

25SMCV06575 25SMCV06575

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Case Number: 25SMCV06575 Hearing Date: June 30, 2026 Dept: P

Tentative

Ruling

Lynn

Johnson, et al. v. Motorsport Exotica, et al., Case No. 25SMCV06575

Defendant

Fixler's Motion to Strike Punitive Damages

Hearing

Date: June 30, 2026

Background

This is a negligence and products liability case. Plaintiffs Lynn Johnson and the Estate of Natasha Warshaw, by and through Lynn Johnson (collectively, "Johnson") sue Defendants Motorsport Exotica, Jarred Fixler ("Fixler"), and Glenn Warshaw, a nominal defendant, for negligence and products liability. Johnson alleges that her daughter, Natasha Warshaw, was killed in a car accident on October 24, 2024, as a result of Fixler's modifications to his 2021 BMW M3 and negligent driving under the influence of alcohol. (Complaint, ¶¶ 10-12.)

Johnson

filed the complaint on December 19, 2025.

On

February 17, 2026, Fixler filed this Motion to Strike Punitive Damages. On June

12, 2026, Johnson filed opposition. On June 23, 2026, Fixler replied.

Arguments

Fixler

moves to strike Plaintiff's claims for punitive damages, arguing that the complaint's allegations of malice, based on its allegations that Fixler disabled the car's traction control and attempted to drift the back tires, are insufficient because they are based on "information and belief." (Morion to Strike, p. 3.) Fixler also argues these allegations do not meet the standard for pleading punitive damages in cases involving drunk driving, where the allegations must show that the defendant was aware of the probable dangerous consequences of his conduct. (Id. at p. 4.) Fixler argues that while the complaint alleges a foreseeable danger, it does not allege that defendant was aware of the probable dangerous consequences of his actions because the alleged conduct was momentary and impulsive, not intentional. (Id. at p. 6.) Finally, Fixler argues that the complaint's negligence allegations are insufficient to establish a claim for punitive damages. (Id. at p. 7.) Fixler requests that the Court deny Johnson leave to amend because she cannot allege additional facts showing malice. (Id. at p. 12.)

In

opposition, Johnson argues that allegations may be made on information or belief where the defendant has superior knowledge of the matter, which is particularly applicable to intent allegations, like these. Johnson argues that the complaint alleges sufficient facts to support her malice allegations, including that Fixler intentionally modified the vehicle to make it less safe, turned off the traction control with the purpose of performing dangerous maneuvers, and 'fishtailed' the vehicle, causing the crash. (Opposition, pp. 3-4.) Johnson argues that her allegations describe actions with probable dangerous consequences, not only foreseeable consequences. Johnson cites *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82 and *People v. Canizalez* (2011) 197 Cal.App.4th 832, to show that intentionally modifying a vehicle to make it less safe and zigzagging while driving are sufficient to allege malice. (Id. at p. 5.) Finally, Johnson requests leave to amend if the Court grants Fixler's Motion.

In reply,

Fixler argues that Johnson's allegations that Fixler knew his conduct was dangerous are conclusory, and argues that *People v. Canizalez* does not

support Johnson's argument because it is a criminal appeal concerning implied malice, and is not relevant to civil punitive damages. (Reply, p. 2.) Fixler argues that leave to amend should be denied because Johnson has not demonstrated that the deficiencies can be cured by amendment. (Id. at p. 5.)

Governing

Law- Motion to Strike

Any party,

within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

a.

Allegations

on information and belief

A

plaintiff may allege facts not within his personal knowledge on information and belief if he has information leading him to believe that the allegations are true. (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159.) Here, Johnson alleges that Fixler consumed alcohol at the Paloma Restaurant on information and belief, but also alleges, not on information and belief, that Fixler modified his vehicle to make it less safe

and drove in a reckless manner. (Complaint, ¶ 10; cf. Complaint, ¶ 12.) In fact, Johnson cites the vehicle's EDR data to support her claim that Fixler exited the restaurant's parking lot and accelerated using 99% of the vehicle's throttle. (Complaint, ¶ 14.) It is reasonable that Johnson would not be able to allege Fixler's intoxication with certainty without discovery because Fixler was allegedly alone with the decedent before and during the accident. Under these circumstances, Johnson's allegation on information and belief is permissible.

b.

Pleading

malice in a negligence action based on drunk driving

A claim

for negligence based on intoxicated driving may support a claim for punitive damages if it "evidence[s] a conscious disregard of probable injury to others." (Dawes v. Superior Court, (1980) 111 Cal.App.3d 82, 88.) In Dawes, the plaintiffs alleged that defendant Mardian drove while intoxicated, ran a stop sign, and was zigzagging in and out of traffic at over 65 miles per hour in a 35 mile per hour zone in a popular recreation area with heavy pedestrian and bicycle traffic. (Ibid.) The Court found that these allegations were sufficient to support the plaintiff's claim for punitive damages. (Id. at p. 89.) The Court also explicitly rejected the defendant's contention that a case that Fixler cites extensively in his motion, Taylor v. Superior Court, eliminated or limited punitive damages in drunk driving cases. (Id. at 89, ["Defendant's analysis is faulty, and we do not agree that the risk created generally by one who becomes intoxicated and decides nevertheless to drive a vehicle on the public streets is the same as the risk created by an intoxicated driver's decision to zigzag in and out of traffic at 65 miles per hour in a crowded beach recreation area at 1:30 in the afternoon on a Sunday in June."].)

Fixler

attempts to distinguish this case from Dawes. He argues that the complaint does not allege a pattern of reckless behavior, nor does it allege the vehicle's speed. In opposition, Johnson argues that she alleges reckless driving behavior very similar to the reckless driving alleged in Dawes. The Court agrees with Johnson. Though the Complaint does not allege Fixler's exact speed, it alleges that he drove out of the Paloma Restaurant's parking lot at 99% of his car's throttle capacity. (Complaint, ¶ 14.) It is reasonable to infer from this allegation that Fixler was accelerating extremely quickly and going fast. Additionally, the complaint alleges that Fixler disabled the car's

traction control, attempted to drift the back wheels of the vehicle, and fishtailed as a result of these actions and Fixler's after-market modifications, causing the accident. (Complaint, ¶¶ 10-14.) Like Dawes, these facts allege an increased risk beyond that inherent in driving intoxicated and are thus sufficient to support a claim for punitive damages.

Conclusion

Fixler's

Motion to Strike is DENIED.